

AFRICAN UNION



UNION AFRICAINE

الاتحاد الأفريقي

UNIÃO AFRICANA

~~AFRICAN COURT ON HUMAN AND PEOPLES' RIGHTS~~

~~COUR AFRICAINE DES DROITS DE L'HOMME ET DES PEUPLES~~

RADAR PROPERTIES

~~IN THE APPLICATIONS FOR INTERVENTION BY WILSON BARNGETUNY KOIMET AND
119 OTHERS~~

~~AND~~

~~PETER KIBIEGON RONO AND 1300 OTHERS~~

~~IN THE MATTER~~versus

ESTATES AGENTS COUNCIL OF ZIMBABWE

and

ZIMBABWE NEWSPAPERS (1980) LTD

HIGH COURT OF

~~AFRICAN COMMISSION ON HUMAN AND PEOPLES' RIGHTS~~

✓

~~REPUBLIC OF~~ ZIMBABWE ~~KENYA~~

TAKUVA J

HARARE; 28 February 2024 & 19 February 2025

Court Application

S. Bhebe ~~APPLICATION No. 006/2012~~

~~ORDER~~

~~(INTERVENTION)~~

~~4 JULY 2019~~

TABLE OF CONTENTS

<u>I.</u>	<u>BRIEF BACKGROUND</u>	<u>4</u>
<u>II.</u>	<u>SUBJECT MATTER OF THE APPLICATIONS</u>	<u>5</u>
<u>A.</u>	<u>Facts of the matter</u>	<u>5</u>
<u>B.</u>	<u>The Applicants' prayers</u>	<u>6</u>
<u>III.</u>	<u>ADMISSIBILITY OF THE APPLICATIONS</u>	<u>6</u>
<u>IV.</u>	<u>COSTS</u>	<u>9</u>
<u>V.</u>	<u>OPERATIVE PART</u>	<u>9</u>

~~The Court composed of: Rafaâ BEN ACHOUR, Ângelo V. MATUSSE, M-Thérèse MUKAMULISA, Suzanne MENGUE, Tujilane R. CHIZUMILA, Chafika BENSOUULA, Stella I. ANUKAM, Imani D. ABOUD: Judges and Robert ENO, Registrar.~~

~~In accordance with Article 22 of the Protocol to the African Charter on Human and Peoples' Rights on the Establishment of an African Court on Human and Peoples' Rights (hereinafter referred to as "the Protocol") and Rule 8 (2) of the Rules of Court (hereinafter referred to as "the Rules"), Justice Ben KIOKO, Vice President of the Court and a national of Kenya, did not hear the Application.~~

~~In the Applications by:~~

- ~~i. ——— Wilson Barngatuny KOIMET and 119 others, being residents of Amalo, Ambuseket and Cheptuech~~
- ~~ii. ——— Peter Kibiegion RONO and 1300 others, being residents of Sigotik, Nessuit, Ngongongeri, Kapsita and Mariosioni~~

~~Represented by:~~

~~Advocate Bore Peter KIPROTICH, Bore, Malanga & Company, Advocates~~

~~Advocate Geoffrey Korir KIPNGETICH, Geoffrey Kipngetich & Company, Advocates~~

~~For intervention in the matter of:~~

AFRICAN COMMISSION ON HUMAN AND PEOPLES' RIGHTSversus, for the applicantS. Hoko, for the 1st respondentNo appearance for the 2nd respondentTAKUVA J:

This is an application for a Declaratur and Consequential relief. The relief is couched in the following terms;

1. "The first respondent's inclusion of RADAR PROPERTIES (Pvt) Ltd in a Publication of the Public Notice Alert titled 'ESTATE AGENTS COUNCIL OF ZIMBABWE (EACZ); BOGUS AGENTS PUBLIC NOTICE ALERT' dated 6 July 2023 in the second respondent's NEWSPAPER was and continues to be unlawful.
2. The first respondent's allegations about the applicant, Radar Properties (Pvt) Ltd in the public notice titled 'ESTATE AGENTS COUNCIL OF ZIMBABWE (EACZ); BOGUS AGENTS PUBLIC NOTICE ALERT' dated 6 July 2023 are false and defamatory.
3. The respondents shall within forty eight (48) hours of the grant of this Order, remove the Public Notice Alert titled 'AGENTS COUNCIL OF ZIMBABWE (EACZ); BOGUS AGENTS PUBLIC NOTICE ALERT' dated 6 July 2023 containing the applicant's name from all their media platforms on the internet, including respondent's social media accounts, including but not limited to Facebook, Instagram, Linked In, Twitter and all websites associated with the respondents. Failing such removal, the Sheriff be and is hereby directed and authorised to procure the removal of the said Public Notice from respondent's social media accounts and websites at the first respondent's cost.
4. First respondent shall within forty eight (48) hours of the grant of this order publish at its own cost on all media platforms including the Herald Newspaper in Zimbabwe (print and online versions), on or in which the Public Notice Alert dated 6 July has been published;
 - (i) a notice unconditionally retracting and apologizing for the allegations made about the applicant in the said Public Notice Alert; and
 - (ii) a copy of this order.
5. The first respondent shall, within forty eight (48) hours of the grant of this order, deliver a signed official headed letter of retraction and unconditional apology for the allegations made about the applicant in the said Public Notice Alert on terms approved by the applicant.
6. The first respondent is hereby interdicted and prohibited from publishing any statement that says or implies that the applicant is illegally practicing as an unregistered estate agent in respect of all immovable property that it lawfully owns; develops and sells including but not limited to the property formally known as the REMAINING EXTENT OF WILLSGROVE and informally as the KINGS CITY DEVELOPMENT.
7. The first respondent and second respondent (if the latter opposes the relief sought) shall bear the costs on higher scale of attorney and client."

BACKGROUND FACTS

1. The applicant is a property development company. The second respondent is a regulatory body established in terms of the Estate Agents Act [Chapter 27:17] to provide for the registration of estate agents and the regulation of the practice of estate agents in Zimbabwe.
2. On 6th of July 2023, the first respondent caused to be published (in print and online versions) through the second respondent in its Herald newspaper, a notice headed “Estate Agents Council of Zimbabwe: BOGUS AGENT PUBLIC NOTICE ALERT under the list of what first respondent called “Unregistered Firms and Individuals practicing as ESTATE AGENTS”, first respondent included the applicant.
3. First respondent has official internet social media accounts on various platforms and has its own website. The Public Notice was further published by the respondent and other publishers on the internet as follows;
 - (a) First respondent’s Facebook page
 - (b) First respondent’s Instagram page
 - (c) First respondent’s Linked In page
 - (d) First respondent’s Twitter page
 - (e) On second respondent’s website page
 - (f) On the ZIMLIVE.COM News Website page

The applicant’s case is that first respondent’s Public Notice of 6th July 2023 is:

1. False and misleading in that the applicant is the registered owner of the land upon which the KINGS CITY DEVELOPMENT is situated.
2. The Public Notice has caused great embarrassment not only to the applicant and its partners, stakeholders, clients and regulatory authorities but has also damaged the applicant’s reputation and good name. Damage arises from cost sales, cancelled sales
3. Unfair, unreasonable and unlawful to the extent to which it represents the actions of an Administrative Authority bound by section 3 of the Administrative Justice Act [Chapter 10:28] which requires that before such drastic action as labelling the applicant a bogus agent is taken, natural justice be adhered to including by a simple enquiry into the applicant’s activities.
4. The listing of applicant’s name in the Notice is false and perser defamatory of the applicant in that it is intended to mean that;

4.1. The applicant is not the owner of the properties that it is developing and selling.

4.2. The applicant is not entitled to develop and sell its own immovable property.

4.3. The applicant is defrauding its buyers and the general public.

4.4. The applicant is an unethical, corrupt, fraudulent and unprofessional land developer, a “land baron”.

5. The applicant denies that it is;

1. A bogus land developer or land baron

2. It is required to be registered as an Estate Agent to market and sell its own properties, or

3. It is practicing as an estate agent in respect of anyone else’s property.

Aggrieved by the first respondent’s conduct as outlined above, the applicant has filed this application urging this court to grant the order referred to *supra*. Applicant believes that it is entitled to such an order.

The application was opposed by the first respondent. The following are the issues for determination;

1. Whether the application for a declaratory order is properly before the court;

2. Whether the applicant was supposed to bring this defamation claim through summons since material disputes of fact exist?

3. Whether the applicant was supposed to approach the court through the Administrative Justice Act [*Chapter 10:28*] in light of its averments.

4. Whether the applicant had a right to be heard/consulted before the publication was made?

5. Whether the first respondent acted in the public interest to protect the profession?

6. Whether the applicant satisfies the requirements of a final interdict?

The first respondent raised the following points in limine;

(a) the application for a declaratory order is not properly before the court.

(b) whether the applicant was supposed to bring this defamation claim through summons since material disputes of fact exists?

(c) the applicant should have approached the court through the Administrative Justice Act.

Of these, the one on material disputes of fact is worth considering.

The Law

The learned authors Herbstein and van WINSSEN in their book, *THE CIVIL PRACTICE OF THE SUPERIOR COURTS in SOUTH AFRICA*, 3rd ed on p 61 states that it is trite that the court can only entertain proceedings on motion where there is no genuine dispute of fact. The question of whether there is real and genuine dispute of fact is for the court to decide. As aptly defined by MAKARAU J (as she then was) in *SUPA PLANT INVESTMENT (Pvt) Ltd v EDGAR CHIDAVAENZI* HH 92/09;

“A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence.”

See also *MHAMBI vs DUBE & ANOR* HB 145/2000 *MASUKUSA v NATIONAL FOODS LTD & ANOR*, 19839 ZLR 232 (H) at 23B C – D.

The crucial question is, therefore whether there is a real dispute of fact which requires determination in order to decide whether the relief claimed should be granted or not. If such a dispute arises, it is ordinarily undesirable to settle the issue solely on probabilities disclosed in contradictory affidavits, in disregard of the additional advantages of *viva voce* evidence. *ROOM HIRE CO (Pty) Ltd v JEPE STREET MANSIONS (Pty) Ltd* 1949 (3) SA 11557_____

In *casu*, it is clear in my view that there are material disputes of facts. The findings made by the first respondent that the applicant is practicing as an unregistered estate agent, are based on Annexure “BB” of its opposing affidavit which *prima facie* shows that the applicant is advertising as a registered real estate agent.

On the other hand, the applicant in paragraph 15 of its FOUNDING AFFIDAVIT refutes the allegation that it is practicing as an estate agent and emphasizes this position in Annexure M of its Founding Affidavit. It should be noted that applicant blames Property Book for what eventually led first respondent to believe that applicant was advertising as an estate agent. The applicant in paragraphs 7 – 3 to 7.9 of its Answering Affidavit gives a long explanation and account of events on what transpired between it and Property Book. The applicant blames errors by Property Book that led to the applicant being advertised as a real estate agent. It is this

categorization that led to the first respondent's notice. Property Book not being a party to these proceedings has not answered these allegations.

Clearly, the parties have two contrasting positions that are material and significant. Contrasting affidavits cannot assist the court to resolve such a dispute. The court cannot take a robust approach and resolve the dispute on the papers. There is need for the applicant to lead *viva voce* evidence through its witnesses to prove that it is not an estate agent or that it is simply a land developer. Respondent should have an opportunity to rebut this evidence and also lead its own evidence. The absence of evidence from Property Book hampers this court's ability to come to a conclusion based on the facts and evidence.

The applicant submitted that there are no disputes of facts and that it is a red herring. I disagree for the simple reason that in paragraph 2 of the Draft Order, applicant urges the court to find that the allegations by the first respondent are false and defamatory. The court is being asked to decide whether the applicant is an Estate Agent or Property Developer? Also the court is being asked to decide whether applicant was defamed or not. The parties have presented two contradictory versions. It is this dispute that cannot be resolved on the papers.

In my view, it cannot be said that this is a matter in which it can be said the applicant was aware of the material disputes of facts at the time it filed this application. For that reason, it is ordered that;

1. The applicant be and is hereby directed to proceed by way of action procedure.
2. The Founding Affidavit shall stand as the summons.
3. The Notice of Opposition shall stand as the plea.
4. Thereafter the trial shall proceed in terms of the rules of this court.

TAKUVA J:

Kantor & Immerman Legal Practitioners, applicant's legal practitioners
Chihambakwe, Mutizwa & Partners, first respondent's legal practitioners

REPUBLIC OF KENYA

after deliberation,

renders the following Order:

I. ——— BRIEF BACKGROUND

1. ——— On 26 May 2017, the Court delivered its judgment on merits in an Application filed by the African Commission on Human and Peoples' Rights (hereinafter referred to as "the Commission") against the Republic of Kenya (hereinafter referred to as "the Respondent State"). In its judgment, the Court found that the Respondent State had violated Articles 1, 2, 8, 14, 17(2) and (3), 21 and 22 of the African Charter on Human and Peoples' Rights (hereinafter referred to as "the Charter") in its relations with the Ogiek Community of the Greater Mau Forest.

2. ——— The Court reserved its determination on reparations while permitting the parties to file submissions on reparations. The parties have filed their submissions on reparations and pleadings were closed on 20 September 2018. The matter is currently under deliberation by the Court.

3. ——— On 16 April 2019, the Court received two Applications: the first Application was filed by Wilson Barngetuny Koimet and 119 others, being residents of Amalo, Ambusket and Cheptuech in the Respondent State and the second Application was filed by Peter Kibiegon Rono and 1300 others, being residents of Sigotik, Nessuit, Ngongongeri, Kapsita and Marioshoni also being locations within the Respondent State. (hereinafter these individuals will collectively be referred to as "the Applicants").

4. ——— Given that the two Applications deal with the same subject matter and are requesting similar reliefs, to wit, whether the Applicants can be allowed to intervene in the present case, the Court holds that it will deal with both Applications at the same time.

~~II. SUBJECT MATTER OF THE APPLICATIONS~~

~~A. Facts of the matter~~

~~5. In the Application filed by Wilson Barngatuny Koimet and 119 others, the Applicants aver that they are the registered owners of land in Amalo, Ambusket and Cheptuech since 1958. It is their further averment that their lands fall within the Greater Mau Forest Complex, which was the subject matter of the case between the Applicant and the Respondent State.~~

~~6. In the Application filed by Peter Kibiegion Rono and 1300 others, the Applicants state that they are residents and legal owners of parcels of land in Sigotik, Nessuit, Ngongongeri, Kapsita and Mariosshoni. They further state that their lands are part of the land that formed the dispute between the Applicant and the Respondent State before this Court.~~

~~7. In both Applications, the Applicants raise the following issues:~~

~~i. The Court's Judgment of 27 May 2017 is likely to affect their interests as owners of land within the Greater Mau Forest Complex even though it was delivered without according any of them an opportunity to be heard.~~

~~ii. Members of the Ogiek Community misled the Court and obtained the Judgment of 27 May 2017 through fraud and concealment of material facts, for example, that some members of the Ogiek Community have over the years sold their land to non-Ogiek, including the intended intervenors.~~

~~iii. The Court's Judgment on merits has disadvantaged and prejudiced them since the Court made findings without according them an opportunity to be heard.~~

~~iv. The Court's Judgment on reparations is likely to irreparably and fundamentally violate their rights, especially if it is made without hearing them.~~

~~v. It is in the interests of justice to allow the Applicants to join the present case since this would enable them to protect their rights.~~

~~B. The Applicants' prayers~~

~~8. The Applicants pray the Court to order:~~

~~"1. THAT this matter be certified as urgent and service be dispensed with in the first instance.~~

~~2. THAT this Honourable court be pleased to enjoin the applicants herein as interested parties in this matter.~~

~~3. THAT this Honourable court be pleased to make any order and or give any directions as it may deem just and fair in the interests of justice."~~

~~9. The Court observes that although there are two Applications, the reliefs sought by the Applicants are framed exactly as reproduced above in both Applications.~~

~~III. ADMISSIBILITY OF THE APPLICATIONS~~

~~10. The Court notes that the issue for determination is whether or not the Applicants' claims are admissible. In resolving this issue the Court must determine whether or not the Charter, the Protocol, the Rules and other applicable rules permit the granting of the prayers made by the Applicants.~~

~~11. The Court observes that Article 5(2) of the Protocol provides as follows: "When a State Party has an interest in a case, it may submit a request to the Court to be permitted to join."~~

~~12. The Court notes that Article 5(2) of the Protocol is reiterated in Rule 33(2) of the Rules which provides as follows: "In accordance with article 5(2) of the Protocol, a State Party which has an interest in a case may submit a request to the Court to be permitted to join in accordance with the procedure established in Rule 53 of these Rules."~~

~~13. The Court further notes that Rule 53 of the Rules provides as follows:~~

~~"~~

~~1. An application for leave to intervene, in accordance with article 5(2) of the Protocol shall be filed as soon as possible, and in any case, before the closure of written proceedings.~~

~~2. The application shall state the names of the Applicant's representatives. It shall specify the case to which it relates, and shall set out:~~

~~a) The legal interest which, in the view of the State applying to intervene, has been affected;~~

~~b) The precise object of the intervention; and~~

~~c) The basis of the jurisdiction which, in the view of the State applying to intervene exists between it and the parties to the case.~~

~~3. The application shall be accompanied by a list of the supporting documents attached thereto and shall be duly reasoned~~

~~4. Certified copies of the application for leave to intervene shall be communicated forthwith to the parties to the case, who shall be entitled to submit their written observations within a time-limit to be fixed by the Court, or by the President if the Court is not in session. The Registrar shall also transmit copies of the application to any other concerned entity mentioned in Rule 35 of these Rules.~~

~~5. If the Court rules that the application is admissible it shall fix a time within which the intervening State shall submit its written observations. Such observations shall be forwarded by the Registrar to the parties to the case, who shall be entitled to file written observations in reply within the timeframes fixed by the Court.~~

~~6. — The intervening State shall be entitled, in the course of oral proceedings, if any, to present its submissions in respect of the subject of the intervention. "~~

~~14. — From the totality of the above provisions, it is clear that neither the Protocol nor the Rules provide a mechanism permitting a third party, which is not a State party, to intervene in on-going proceedings. Additionally, it is also clear that even where States are permitted to intervene in on-going proceedings, this has to be done before the close of pleadings — Rule 53(1) of the Rules.~~

~~15. — The Court wishes to observe that the genesis of the case between the Commission and the Respondent State lies in an Application that was filed before it on 12 July 2012. Before that, a communication had been lodged before the Commission on 14 November 2009. As earlier pointed out, the Court's judgment on merits was delivered on 26 May 2017. From the time the judgment on the merits was delivered, to the time the Applicants lodged their Applications for intervention, a period of one (1) year and eleven (11) months elapsed. It is also notable that a period of six (6) years and eight (8) months elapsed between the time the case was filed before the Court to the filing of the Applications for intervention. The Court takes judicial notice of the fact that the litigation between the Commission and the Respondent State has continued to generate media attention within the Respondent State such that its subsistence can safely be assumed to be common knowledge, at least within the Respondent State particularly in the areas where the present Applicants reside. Against this background, the Applicants have not proffered any explanation for the delay in filing their Applications.~~

~~16. — Consequently, the Court, bearing in mind the provisions of the Protocol and the Rules, holds that there is no basis for admitting the Applications for intervention and accordingly dismisses them.~~

~~IV. COSTS~~

~~17. The Court recalls that in terms of Rule 30 of the Rules, "unless otherwise decided by the Court, each party shall bear its own costs." In the present case, the Court, decides that each party shall bear its own costs..~~

~~V. OPERATIVE PART~~

~~18. For these reasons~~

~~THE COURT~~

~~By a majority of Nine (9) for, and One (1) against (Judge Bensaoula dissenting):~~

~~(i) Declares that the Applications are inadmissible;~~

~~_____~~

~~_____ On costs~~

~~(ii) Orders that each party shall bear its own costs~~

Signed:

~~Rafaâ BEN ACHOUR, (Dean of Judges);~~

~~and~~

~~Robert ENO, Registrar.~~

~~In accordance with Article 28(7) of the Protocol and Rule 60(5) of the Rules, the dissenting opinion of Justice Bensaoula is attached to this Order.~~

~~Done at Arusha, this 4th Day of the month of July in the year Two Thousand and Nineteen, in English and French, the English text being authoritative.~~